

Tuesday, May 19, 2026

Securities and Exchange Commission
100F Street, NE
Washington, D.C. 20549

RE: Comments on proposal for Form 10-S

Gentlepersons:

I would like to make a few comments on the proposal for proposed Form 10-S.

In an age when everything is moving faster, I am stunned that the Commission is proposing rules to slow down the process. We have virtually real time trading and next day settlements. Today's market operates practically in real time. However, effectively all transactions are premised upon information. Information the issuer disseminates primarily. I fail to see how that makes the markets more efficient, more orderly, or builds investor confidence. Those are the foundational items upon which the American capital markets are built and upon which it's reputation stands. I believe this proposal may have the opposite effect. Moreover, it gives foreign markets a competitive advantage, at a time when new U.S. issuers are at a low point. That is the overview.

I am skeptical that issuers will see an aggregate material savings by reducing two Form 10-Qs. All the PCAOB auditors are still going to go through the same amount of material for the year. However, they have two less looks by not reviewing the Form 10-Qs allowing items to take root or fester. It is the old proverb of an ounce of prevention is equal to a pound of cure. Or in modern parlance, maintenance is cheaper than breakdowns.

One of the subline benefits of all issuers doing quarterly reports, is all issuers are doing quarterly reports. The uniformity creates an apples-to-apples effect. It is not simply an issue of dividing by two, it is the regularity of the information provided. All issuers reporting quarterly creates a momentum of consumer confidence.

I also have concerns with market mechanics and collateral effects. Quarterly reporting is baked into a variety of market mechanics such as: provisions in financing agreements for defaults based upon regular reporting (and I have doubts that creditors are going to enjoy getting financial information less regularly, which creates an asymmetric non-public information issue); Rule 144 adequate public information (although entitlement holders are availing themselves less frequently of Rule 144 exemptions, I believe the

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Commission will face definitional encounters with the timeliness of adequate public information); delayed listing determinations (e.g. shareholders equity for minimum listing or delisting determinations), etc. The more you look at the market mechanics the more potential issues you see. Admittedly, it probably is not insurmountable, but you can also drive a car on three wheels. I do not see the cost benefit of making life easier for American Issuers at the expense of operating American markets on three wheels.

Lastly, I would respectfully request that the Commission reduce the size of their own proposals. This proposal was 279 pages. I sincerely doubt everyone read the whole proposal, let alone could digest the 279 pages.

I fully understand the need to be thorough and the magnitude of the Commission's proposals that will have a systemic effect on orderly markets, investor confidence, and valuations. However, the sheer volume of pages generated makes things less clear rather than more clear due to the indigestibility of the magnitude of pages.

Please consider reducing the page count.

Yours, etc.,

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